

Court No. - 3

Case :- WRIT - C No. - 5658 of 2022

Petitioner :- Liyakat Ali

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Manoj Kumar Singh

Counsel for Respondent :- C.S.C., Abhishek Srivastava

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

1. Heard learned counsel for the petitioner, learned Standing Counsel for the State-respondents, and Shri Abhishek Srivastava, learned counsel for the respondent nos. 2 and 3.

2. This writ petition has been filed praying for the following reliefs :

"A. Issue a writ order or direction in the nature of certiorari quashing the notice dated 01.09.2021 issued by respondent no. 2, whereby imposed provisional assessment bill of Rs. 8,83,649/-, during the pendency of the present writ petition.

B. Issue a writ order or direction in the nature of mandamus commanding and directing the respondent authority to not disconnect the electric connection or take off the meter of electricity connection from the premises of petitioner."

3. Learned counsel for the respondent nos.2 and 3/Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

4. In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed of** giving liberty to the petitioner to submit his objection under Para 6.8 of U.P. Electricity Supply Code, 2005 before the respondent no.2 within four weeks from today alongwith a certified copy of this order. In the event, such an objection is submitted within the stipulated period, it shall be

decided by the respondent no.2 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

5. For a period of eight weeks or till the disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand/notice.

Order Date :- 4.7.2022

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